

Activity 8: Break a Construction Variation Impasse

Course TGS-2023020567 · K5 · K6 · A4

Objective

Diagnose and resolve an impasse using objective criteria, issue separation and escalation choices.

Real-world use-case basis

Real-world use case: project variations frequently create disputes over entitlement, valuation, delay, evidence and authority. This simulation is educational and not legal advice.

Scenario

An office refurbishment owner instructed a late layout change. The contractor claims additional labour, materials and a 12-day extension. The owner accepts some cost but says the contractor's notice was late and its schedule evidence is weak. Meetings have become positional and both sides threaten formal dispute procedures.

Primary source

<https://www.pon.harvard.edu/freemium/negotiation-skills-negotiation-strategies-and-negotiation-techniques-to-help-you-become-a-better-negotiator/>

Training assumptions

- The contractor claims SGD 185,000; the owner's internal estimate is SGD 112,000.
- Independent quantity rates support a range of SGD 125,000–145,000 before delay impact.
- A 12-day delay would cost the owner SGD 36,000 in temporary premises.
- The contract and legal rights are simplified training inputs and require professional review in practice.

Questions

1. Is the impasse about entitlement, valuation, delay, process or face?
2. Which precedents and objective criteria are genuinely comparable?
3. What package could separate undisputed and disputed components?
4. When should the parties pause, escalate, mediate or pursue BATNA?

Expected output

A without-prejudice settlement package and a documented fallback path.

Acceptance test

The recommendation addresses each issue separately, uses at least two defensible criteria and preserves a clear non-agreement path.